

**Judge Mosbarger – Law & Motion – Wednesday, July 1, 2026 @ 9:00 AM  
TENTATIVE RULINGS**

**1. 22CV01203 MILLER, MARK V. TOGNERI, ROSALINA**

*EVENT: Review Hearing [Report on Status of Sale]*

The Court will hear from counsel for the partition referee, Rob Haley, on the status of the sale of the real property.

**2-3. 23CV00692 HINOJOSA, ISAIAH V. FORD MOTOR COMPANY ET AL**

*EVENTS: (1) Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as DOE 1, Teichert, Inc.'s Demurrer to Third Amended Complaint*

*(2) Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as DOE 1, Teichert, Inc.'s Motion to Strike Portions of Third Amended Complaint*

**Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as DOE 1,  
Teichert, Inc.'s Demurrer to Third Amended Complaint**

Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as DOE 1, Teichert, Inc.'s ("Defendant" herein) Request for Judicial Notice is granted as to the existence of the documents. However, the Court does not, for purposes of this Demurrer, accept as true the inferences, interpretations, or conclusions related to these documents proffered by Defendant.

The elements necessary to plead a cause of action for negligence are 1) duty; 2) breach; 3) causation; and 4) damages. *Toland v. Sunland Housing Group, Inc.* (1998) 18 Cal.4th 253, 267. Here, the Court finds that the Third Amended Complaint sufficiently pleads the required elements. See, Third Amended Complaint at Paragraphs 23-27. As to the completed-and-accepted doctrine, the Court agrees with Plaintiff, that the doctrine presents factual questions that cannot be resolved at the pleading stage. The Third Amended Complaint expressly alleges that the work was not accepted and/or was not completed. At this stage, those allegations must be accepted as true, and the Demurrer to the First Cause of Action for Negligence is overruled.

As to the Second Cause of Action for Strict Liability, based on Plaintiff's Opposition, and the indication therein that Plaintiff does not contend that Teichert is strictly liable as a product seller, the Demurrer to the Second Cause of Action is sustained. The Court grants leave to amend to allow Plaintiff to clarify the Doe designations, so the Second Cause of Action does not run against Teichert. Any amended Complaint is to be filed and served within 20 days' notice of this order. Counsel for the Defendant shall prepare and submit a form of order consistent with this ruling within two weeks.

**Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as DOE 1,  
Teichert, Inc.'s Motion to Strike Portions of Third Amended Complaint**

In pleading punitive damages, a party must plead facts from which it can be reasonably inferred that the defendant acted with malice, oppression or fraud within the meaning of

*Civil Code* §3294. “Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” *Grieves v. Superior Court* (1984) 157 Cal.App.3d. 159, 166. Here, the Court finds that there are insufficient allegations of oppression, fraud, or malice and therefore the claim for punitive damages is inappropriate. Additionally, as to the allegations of corporate ratification, the Court likewise finds those allegations lacking and the Motion to Strike is granted in its entirety. Leave to amend is granted. Any amended Complaint is to be filed and served within 20 days’ notice of this order. The Court will utilize the form of order submitted by Defendant with modification to Paragraph 4 to indicate that leave to amend is granted.

**4-6. 23CV02667 PARRISH SCARBROUGH, MELISSA V. LALLY, KULWINDER ET AL**

- EVENTS: (1) Plaintiff Melissa Parrish Scarbrough’s Motion to Compel Deposition of Defendant Harry Hawinder and Request for Monetary Sanctions in the Amount of \$2,146.00 Against Defendant Harry Hawinder and his Counsel, and evidence, Issue and Terminating Sanctions*
- (2) Plaintiff Melissa Parrish Scarbrough’s Motion to Compel Deposition of Defendant Kuldeep Lally and Request for Monetary Sanctions in the Amount of \$1,794.00 Against Defendant Kuldeep Lally and his Counsel, and evidence, Issue and Terminating Sanctions*
- (3) Plaintiff Melissa Parrish Scarbrough’s Motion to Compel Deposition of Defendant Kulwinder Lally and Request for Monetary Sanctions in the Amount of \$1,794.00 Against Defendant Kulwinder Lally and his Counsel, and evidence, Issue and Terminating Sanctions*

As an initial matter, pursuant to *Code of Civil Procedure* §1005(b), any opposition to the pending motions were to be filed and served no later than June 17, 2026 [9 Court days before the hearing]. Here, Defendants’ Opposition to Plaintiff’s Motion to Compel Depositions and Request for Monetary, Issue, Evidence, and Terminating Sanctions was not filed and served until June 24, 2026. There is no explanation as to why the Opposition was filed untimely and the Court has declined to consider the arguments therein. The Court finds that there has now been a showing of ongoing and willful disobedience of this Court’s discovery orders and blatant and ongoing abuse of the discovery process that rises to the level of discovery abuse to support terminating sanctions. See, *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093. As such, terminating sanctions are warranted on this record, the Motions are granted, and Defendants’ General Denial filed on March 11, 2026 is hereby stricken. The Court will sign the forms of order submitted by Plaintiff. Given the Court’s ruling, the Court will hear from Plaintiff’s counsel regarding the upcoming hearing on Plaintiff’s Motion for Summary Adjudication. However, this is not an invitation to present oral argument in regard to Plaintiff’s Motions. If the parties wish to argue the tentative ruling, they must comply with Butte County Local Rule 2.9 and California Rules of Court Rule 3.1308(a)(1).